SKELITE TALENT PARTNERS

# Leave & Attendance Pack

13 assets · Rs 599

*Sample pages. The pages that follow are taken unedited from the pack you receive.*

## WHAT YOU GET

- 13 files: 10 Word documents, 3 working Excel tools
- Leave and attendance policies in Balanced and Progressive variants
- Written against the OSH Code 180-day eligibility floor
- Holiday calendar and state guide, overtime and comp-off policy
- Accrual tracker, attendance register and overtime log with live formulas

### WRITTEN AGAINST THE LAW AS IT STANDS

The four Labour Codes commenced 21 November 2025. Central rules followed in May 2026. Every document states the position it was written against.

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# Start Here. Pack Guide

Pack 07. Leave & Attendance | Ref: P07-00

*Your leave policy is almost certainly out of date. Here is why.*

## WHAT THIS PACK DOES

Leave and attendance looks like the dullest corner of HR and is, in practice, where most Indian SMEs carry an unrecognised liability. The rules changed materially when the Labour Codes commenced on 21 November 2025, and almost nobody rewrote their policy.

### THE CHANGE THAT AFFECTS EVERY COMPANY IN INDIA

Eligibility for annual leave with wages dropped from 240 days worked in a calendar year to 180. Accrual is one day for every twenty days worked. Carry-forward is capped at thirty days, and the balance above that is encashable, and under the OSH Code an employee can now demand that encashment during employment, not only on exit. If your policy still says 240 days, or still treats unused leave as simply lapsing, it understates both your employees' entitlement and your own balance-sheet liability.

## WHAT IS INSIDE

| Ref | Asset | Format | What it is for |
|---|---|---|---|
| P07-00 | **Start Here. Pack Guide** | Word | This document. What changed, and what to fix first. |
| P07-01 | **Leave Policy** | Word | Balanced and Progressive versions. The core document. |
| P07-02 | **Attendance & Working Hours Policy** | Word | Balanced and Progressive. Hours, spread-over, remote. |
| P07-03 | **Holiday Calendar & State Guide** | Word | Three national holidays, plus what each state requires. |
| P07-04 | **Leave Application & Approval Form** | Word | Request, approve, record. Including the awkward cases. |
| P07-05 | **Overtime & Comp-Off Policy** | Word | Twice the rate, with consent, inside the quarterly cap. |
| P07-06 | **Absence Management Guide** | Word | Patterns, unauthorised absence, long-term sickness. |
| P07-07 | **Leave Encashment & Exit Settlement** | Word | What you owe, when, and how to calculate it. |
| P07-08 | **Leave Balance & Accrual Tracker** | Excel | Accrual by the Code's formula, not a flat allotment. |
| P07-09 | **Attendance Register** | Excel | Daily marking, monthly summary, pattern flags. |
| P07-10 | **Overtime & Comp-Off Log** | Excel | Hours, consent, the 125-hour quarterly cap tracked. |



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# Leave Policy

Pack 07. Leave & Attendance | Ref: P07-01

*Market-standard for an Indian SME. Compliant, affordable, unremarkable.*

## HOW TO USE THIS DOCUMENT

| Field | Detail |
|---|---|
| **Purpose** | Set out every type of leave, how it accrues, how it is applied for and approved, and what happens to any balance, in line with the OSH Code 2020 and the applicable state Act. |
| **When to use it** | Adopt before the leave year opens. Review annually and whenever state rules change. |
| **Who should use it** | HR owns it. Managers approve within it. Payroll acts on it. |
| **Output** | An adopted policy, communicated and acknowledged. |
| **Time to complete** | 90 minutes to adapt to your state and headcount |

### Step-by-step instructions

1. **Set your leave year and say so.** Calendar year is simplest because the OSH Code's 180-day eligibility and accrual are framed by calendar year. A financial-year leave cycle is possible but you then have to track statutory entitlement separately, and most companies that do this get it wrong.
2. **Decide what you give above the statutory floor.** The Code gives one day per twenty days worked. Most Indian SMEs offer a flat annual figure that exceeds it. Say clearly which parts of your offer are statutory and which are contractual, because you can change the latter and not the former.
3. **Write the carry-forward and encashment position correctly.** Up to 30 days carries forward. Above that is encashable, and an employee may ask for that encashment during employment. Do not write a blanket lapse clause.
4. **Check your state's casual and sick leave requirements.** These come from the state Shops and Establishments Act, not the OSH Code, and they differ.
5. **Set approval rules people can actually follow.** Notice periods for planned leave, what happens with sickness, who approves what, and what happens when the manager is unreachable.
6. **State the maternity position by the right authority.** Code on Social Security 2020, Chapter VI. Twenty-six weeks for the first two children. The Maternity Benefit Act 1961 was subsumed; citing it alone signals the policy has not been reviewed.
7. **Decide your position on unpaid leave and sabbaticals.** Silence here produces inconsistent decisions, which is where grievances come from.



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| | | | |
|---|---|---|---|
| **termination** | | | |
| **Bereavement leave** | **[5] days** | Immediate family. Company-provided, not statutory. | Inform your manager |
| **Compensatory off** | As earned | For approved work on a weekly off or holiday. See P07-05. | Within [60] days of being earned |
| **Leave without pay** | By approval | Where paid balances are exhausted. Approved by [ROLE]. | At least [15] days in advance |

*Entitlements shown are for a full leave year and are pro-rated for part-year service. Earned leave accrues on confirmation.*

## 3. How earned leave accrues

Earned leave accrues monthly at 18/12 days per completed month of service. It is credited at the end of each month and is available to take once credited. We calculate your statutory accrual under the OSH Code formula in parallel, and if that produces a higher figure in any year, you receive the higher figure.

## 4. Carry forward and encashment

- **Carry forward.** Up to 30 days of unused earned leave carries forward into the next leave year. [Where the company figure exceeds 30, note that 30 is the statutory minimum carry-forward and the company permits more.]
- **Encashment above the cap.** Any earned leave balance above the carry-forward cap is encashed at the end of the leave year, at [basic + DA]. You may also request encashment of a balance above 30 days during the year, in line with the OSH Code.
- **On exit.** Your entire unused earned leave balance is encashed in your full and final settlement. See P07-07.
- **Casual and sick leave.** Do not carry forward and are not encashed.

## 5. Applying for and approving leave

1. Apply through [SYSTEM] using the form at P07-04. Leave is not taken until it is approved.
2. Your manager will respond within [2] working days. Where leave is declined, the reason will be given in writing.
3. For sickness, inform your manager before the start of your working day and apply retrospectively on return.
4. A medical certificate is required for [3] or more consecutive days of sick leave.
5. Where your manager is unavailable, approval passes to [SKIP-LEVEL ROLE].
6. Leave already approved will only be cancelled by the company where there is a genuine business necessity, and any non-refundable costs you have incurred will be reimbursed.

## 6. Other provisions

- **Public holidays falling within leave.** A public holiday that falls inside a period of approved leave is not deducted from your leave balance.
- **Weekly off within leave.** [STATE WHETHER INTERVENING WEEKLY OFFS ARE COUNTED. Most SMEs do not count them.]
- **Leave during notice period.** Leave during notice is at the company's discretion and will not normally be approved except for pre-approved leave or genuine sickness.
- **Unauthorised absence.** Absence without approval or intimation is treated under P07-06 and may be dealt with under the disciplinary policy.



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